

**Tentative Rulings and Resolution Review Hearings
September 8, 2026
Department 63**

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

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- 1. Please mute your telephone until your case is called.**
- 2. Please do not place the call on hold.**
- 3. Minimize all background noise during your call.**
- 4. Please identify yourself, each time, prior to addressing the court.**
- 5. Disconnect when the court has completed your case or cases.**
- 6. The court prohibits the recording of these proceedings.**

8:30 a.m. – Law & Motion

BAXTER, ET AL. VS. NISSAN NORTH AMERICA INC

CASE NUMBER: 26CV-0210163

Tentative Ruling on Demurrer: Defendant Nissan North American Inc. demurs to the entirety of the First Amended Complaint filed by Plaintiffs Denaro Joseph Baxter and Cassie Lee Smith. Plaintiffs oppose the Demurrer.

Meet and Confer. Defendant has provided evidence of sufficient effort to meet and confer prior to filing the demurrer.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action." CCP § 430.10(e). The Court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or

conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Defendant demurs to the entirety of the First Amended Complaint on the basis that the First and Second causes of action are uncertain, unintelligible, ambiguous, and fail to state facts sufficient to constitute a cause of action.

First Cause of Action for violation of the Magnuson Moss Warranty Act. “Magnuson-Moss permits a “consumer” to bring an action for damages and other relief when a warrantor breaches its obligations under a warranty or under the act.” *Atkinson v. Elk Corporation of Texas* (2006) 142 Cal.App.4th 212, 222. “Magnuson-Moss “calls for the application of state written and implied warranty law, not the creation of additional federal law,” except in specific instances in which it expressly prescribes a regulating rule.” *Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 833. “[F]ailure to state a warranty claim under state law necessarily constitute[s] a failure to state a claim under Magnuson-Moss.” *Id.*

The First Cause of Action is dependent on the survival of the Second Cause of Action for breach of warranty. As explained below, the demurrer is sustained without leave to amend as to the Second Cause of Action. Consequently, the demurrer is also **SUSTAINED** as to the First Cause of Action without leave to amend.

Second Cause of Action for breach of warranty. The Second Cause of Action specifically alleges breach of an implied warranty of merchantability under the California Uniform Commercial Code. Defendant argues that they are precluded from liability because the law only applies to distributors, not manufacturers. Defendant relies heavily on *Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399, in which plaintiff alleged breach of an implied warranty under the Song-Beverly Act. While the court in *Ruiz Nunez* held that “in the sale of used consumer goods, liability for breach of implied warranty lies with distributors and retailers, not the manufacturer, where there is no evidence the manufacturer played any role in the sale of the used car to plaintiff,” the court was analyzing the application of Civ. Code § 1791. This is not applicable here. Plaintiffs bring a claim under the California Commercial Code, where implied warranties are governed by Cal. Com. Code § 2314. Defendants have not provided sufficient authority that they are not precluded from liability based on Cal. Com. Code § 2314.

Defendant additionally argues that Plaintiffs fail to allege the requisite privity required to maintain a cause of action for breach of warranty. “In California, a ‘plaintiff alleging breach of warranty claims must stand in vertical privity’ with the defendant.” *Annunziato v. eMachines, Inc.* (2005) 402 F.Supp.2d 1133. “The term vertical privity’ refers to links the chain of distribution of goods. If the buyer and seller occupy adjoining links in the chain, they are in vertical privity with each other.” *Osborne v. Subaru of America, Inc.* (1988) 198 Cal.App.3d at 656 n. 6. “[T]here is no privity between the original seller and a subsequent purchaser who is in no way a party to the original sale.” *Burr v. Sherin Williams Co.* (1954) 42 Cal.2d 682. Here, the First Amended Complaint fails to allege vertical privity between Plaintiffs and Defendant. Plaintiffs assert that the vehicle was purchased used. They were therefore not a party to the original sale, and no additional facts have been provided to support that Plaintiffs can allege vertical privity. The demurrer is **SUSTAINED** without leave to amend as to the Second Cause of Action for failure to state facts sufficient to constitute a cause of action.

The Demurrer is **SUSTAINED** without leave to amend as to all causes of action of the First Amended Petition on the grounds that Plaintiffs have failed to state facts sufficient to constitute a cause of action. Defendant provided a proposed order that will be executed by the Court. The clerk is directed to close the file and vacate any future hearing dates upon processing of the order.

BOYLE VS. FRIESEN GROUP INC

CASE NUMBER: 26CV-0210559

Tentative Ruling on Demurrer: Defendant, Friesen Group, Inc. demurs to the Twelfth Cause of Action of the Complaint filed by Plaintiff Daniel Boyle. Plaintiff opposes the demurrer.

Meet and Confer. Defendant has provided evidence of sufficient effort to meet and confer prior to filing the Demurrer.

Request for Judicial Notice. Plaintiff requests the Court take judicial notice of the Complaint filed on April 30, 2026. The request is granted pursuant to Evid. Code § 452.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Defendant demurs to the Twelfth Cause of Action for failure to provide accurate, itemized wage statements in compliance with Labor Code § 226 on the grounds that it fails to state facts sufficient to constitute a cause of action.

“[A]n employer is required to identify only those statutory items that are part of the employee's current monetary compensation. The employer must provide the employee with an itemized statement identifying the specific wages being paid at the time of the payment (or at least semimonthly).” *Soto v. Motel 6 Operating, L.P.* (2016) 4 Cal.App.5th 385, 393. “Section 226, subdivision (a) requires an employer to provide employees with “an accurate itemized statement” that includes: (1) gross wages earned; (2) total hours worked; (3) certain information for employees paid on a piece-rate basis; (4) all deductions; (5) net wages earned; (6) the pay period; (7) the employee's name and identifying information; (8) “the name and address of the legal entity that is the employer”; and (9) all applicable hourly rates.” *Savea v. YRC Inc.* (2019) 34 Cal.App.5th 173, 178. “[A]n employee is deemed to be injured if the employer either fails to provide any wage statement or if it provides a wage statement that fails to provide “accurate and complete information” about certain items such that the employee “cannot promptly and easily determine from the wage statement alone” certain specified wage-related information.” *Naranjo v. Spectrum Security Services, Inc.* (2024) 15 Cal.5th 1056, 1070.

Defendant first argues that Plaintiff cannot establish that he suffered injury. Here, paragraph 102 of the Complaint alleges that “Defendant failed to provide Plaintiff with accurate, itemized wage statements in writing...Specifically, the wage statements given to Plaintiff failed to account for the unpaid wages, overtime, and premium pay for deficiently provided meal and rest periods...” “[T]he wage statement requirements apply to amounts *earned*, even if those amounts were not paid because of confusion over whether the amounts were owed in the first place.” *Naranjo*, supra, 15 Cal.5th 1056, 1076. The Court finds the Complaint sufficiently alleges that Defendant failed to include unpaid wages, overtime, and premium pay in itemized wage statements, thereby creating a presumption of injury. Paragraphs 15 through 17 of the Complaint sufficiently put Defendant on notice that the alleged unpaid wages, overtime, and premium pay were the result of the alleged failure of Defendant to provide meal and rest breaks. The details regarding dates, times, and amounts are not necessary at the pleading stage and may be obtained through discovery.

Defendant also argues that the Complaint fails to sufficiently plead “knowing and intentional” conduct to permit the monetary remedy requested. “To establish a “knowing and intentional” violation of Labor Code section 226, subdivision (a), an employee must demonstrate that the employer was ““aware of the factual predicate underlying the violation[s].” *Furry v. East Bay Publishing, LLC* (2018) 30 Cal.App.5th 1072, 1085. Labor Code § 226(e)(3) clarifies that “a “knowing and intentional failure” does not include an isolated and unintentional payroll error due to a clerical or inadvertent mistake.” “An employer that believes reasonably and in good faith, albeit mistakenly, that it has complied with wage statement requirements does not fail to comply with those requirements knowingly and intentionally.” *Naranjo*, supra, 15 Cal.5th 1056, 1087.

In this instance, the Complaint only alleges that “Defendant knew, or reasonably should have known” the unpaid wages were owed to Plaintiff. However, the Twelfth Cause of Action also incorporates allegations previously set forth which includes the factual predicates underlying the violations. For example, paragraph 15 alleges that “despite Plaintiff being forced to work through Plaintiff’s meal breaks, Defendant Friesen Group Supervisors Blaine (last name unknown) and Trevor (last name unknown) clocked Plaintiff in and out for Plaintiff’s meal breaks.” Additionally, paragraph 16 alleges that “Plaintiff was contacted by Defendant Friesen Group supervisors about work-related tasks during Plaintiff’s meal and rest breaks.” The Court finds the Complaint sufficiently alleges “knowing and intentional” conduct.

The Demurrer is **OVERRULED**. Defendant provided a proposed Order that will be modified to reflect the Court’s ruling.

Tentative Ruling on Motion to Strike: Defendant Friesen Group Inc. moves to strike the prayer for punitive damages, injunctive relief, and all references to allegations that Defendant acted “fraudulently, maliciously, and oppressively with a conscious, reckless, and willful disregard, and/or with callous disregard” related to First, Second, Third, Fourth, Fifth, and Sixth Causes of Action in the Complaint filed by Plaintiff on April 30, 2026. Plaintiff opposes the motion.

Meet and Confer. Defendants provided sufficient evidence of meet and confer efforts prior to filing the Motion to Strike.

Request for Judicial Notice. Plaintiff requests the Court take judicial notice of the Complaint filed on April 30, 2026. The request is granted pursuant to Evid. Code § 452.

Merits. A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal. App. 3d 24. It is proper for the Court to strike any irrelevant, false or improper matter. CCP § 436(a). The Court can also strike any part of a pleading that is not drawn or filed in conformity with California law. CCP § 436(b).

Punitive damages. Defendant moves to strike all references in the Complaint to punitive damages and page 5 ¶ 27; page 7 ¶ 35; page 8 ¶ 43; page 9 ¶ 52; page 10 ¶ 60; and page 11 ¶ 68 all of which allege that Defendant acted “fraudulently, maliciously, and oppressively with a conscious, reckless, and willful disregard, and/or with callous disregard.” Defendant argues that Plaintiff has not adequately alleged facts sufficient to satisfy Civil Code section 3294. That section provides that a plaintiff may recover punitive and exemplary damages where clear and convincing evidence establishes that defendant has been guilty of oppression, fraud or malice.

“In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with

a willful and conscious disregard of the rights or safety of others. Oppression means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. Fraud is an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63 (internal citations omitted).

Simply characterizing a defendant's conduct as "intentional, willful, malicious, fraudulent, [or] false" is patently insufficient to support a claim. *Smith v. Superior Court* (1992) 10 Cal. App. 4th 1033. Allegations that a defendant's conduct was wrongful, willful, wanton, reckless, or unlawful charge negligence or nondeliberate injury, which do not rise to the level of malice. *Ibid.*

Plaintiff's factual allegations in the Complaint do not support a prayer for punitive damages. Plaintiff generally alleges that Defendant discriminated and retaliated against Plaintiff by terminating his employment. There are no allegations of conduct *intended* by Defendant to cause injury; of despicable conduct subjecting Plaintiff to cruel and unjust hardship in conscious disregard of his rights; or of intentional misrepresentation or concealment with intent to cause injury.

Additionally, Defendant alleges the Complaint fails to identify any officer, director, or managing agent of Defendant required for corporate liability under Civ. Code § 3294(b). “Corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive. An award of punitive damages against a corporation therefore must rest on the malice of the corporation's employees.” *Cruz v. Homebase* (2000) 83 Cal.App.4th 160, 167. “With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” Civ. Code § 3294(b). Here, the Complaint does not allege that an officer, director, or managing agent of the corporation engaged in conduct of any kind, never mind conduct rising to the level to permit punitive damages.

The Motion to Strike the prayer for punitive damages and page 5 ¶ 27; page 7 ¶ 35; page 8 ¶ 43; page 9 ¶ 52; page 10 ¶ 60; and page 11 ¶ 68 is **GRANTED**.

Injunctive relief. Defendant argues that the relief requested on page 18, ¶ 126 is inappropriate because Labor Code § 1194.5 vests the authority to seek an injunction exclusively with the Division of Labor Standards Enforcement and because there is no likelihood of future harm.

Labor Code § 1194.5 states that “[i]n any case in which a person employing an employee has willfully violated any of the laws, regulations, or orders governing the wages, hours of work, or working conditions of such employee, the division may seek, in a court of competent jurisdiction, and the court may grant, an injunction against any further violations of any such laws, regulations, or orders by such person.” The plain language of the statute expressly allows the “division” to seek an injunction. Plaintiff has not provided any authority to support the claim that the statute is permissive, allowing an individual to bring a request for injunction under the section. The Court finds the requested relief unavailable, therefore the Motion to Strike page 18 ¶ 126 is **GRANTED**.

In summary, the Motion to Strike is **GRANTED** as outlined above. Defendant provided a proposed order that will be executed by the Court.

GERLINGER FOUNDRY AND MACHINE WORKS, INC. VS. CONXTECH, INC.

CASE NUMBER: 26CV-0209989

Tentative Ruling on Motion to Set Aside and Enter Judgment Pursuant to CCP §§ 473(b) and 664.6:
Plaintiff Gerlinger Foundry and Machine Works, Inc. seeks to enforce a settlement agreement reached between

Plaintiff and Defendant Contech, Inc. Defendant opposes the motion.

This matter was dismissed without prejudice on May 7, 2026, pursuant to the request of Plaintiff. The Request for Dismissal filed on May 7, 2026, was signed by Plaintiff's counsel Aaron W. Moore. Under Item 1, counsel checked the a.(2) box that reads "Without Prejudice" rather than the a.(3) box that reads "Without prejudice and with the court retaining jurisdiction (Code. Civ. Pro., § 664.6)." On July 20, 2026, the Court heard a motion seeking the same relief requested in this motion, however, the relief requested was based on different basis than claimed now.

In this motion, Plaintiff now argues that the Court has jurisdiction to hear the motion because no request to retain jurisdiction is required and even if the dismissal did need to be set aside for the Court to have jurisdiction, the mandatory attorney affidavit of fault provision of CCP § 473(b) applies.

The Court is not persuaded by the arguments made regarding the effect of the change to CCP § 664.6 which now reads, in part:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

CCP § 664.6(a)

Plaintiffs argue that the Court has jurisdiction because the "request" language was removed. The two sentences are separate. The first sentence addresses the Court enforcing a settlement agreement if certain conditions are met. The second sentence is regarding the matter being dismissed without prejudice with the Court still retaining jurisdiction to enforce the settlement. Judicial Council Form CIV-110 was amended January 1, 2025 to include Item 1.a.(3), which allows a party to simply check a box indicating that the dismissal is with the Court retaining jurisdiction. The form contains the language "If Item 1a(3) is checked, all parties must sign." This is because retention is not automatic. The parties have to agree to it. Because a stipulation had not been filed with the court and because there was no signature for Defendant on the CIV-110 returned by the clerk on May 5, 2026, the clerk was correct in not dismissing the matter the first time it was requested. The clerk provided clear instruction that the parties or their counsel must stipulate in writing or orally before the court for the 664.6. dismissal. The CIV-110 form itself provides that a signature from Defendant is needed. There is nothing before the Court that leads the Court to the conclusion that the Court has jurisdiction to enforce the settlement here. Plaintiff dismissed the case without prejudice without seeking CCP § 664.6 retention.

However, the Court does have jurisdiction to hear a motion made pursuant to CCP § 473(b) as it relates to Plaintiff's request to set aside the dismissal.

The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. ... Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no

more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.

CCP § 473(b).

The Court notes that the arguments made have changed drastically from the first motion to this motion. Previously, Plaintiff argued that "Plaintiff dismissed the case based upon a mistaken belief that Defendant would comply with the parties' Settlement Agreement. Alternatively, Defendant misrepresented to Plaintiff that Defendant would comply with the Agreement, which equally constituted mistake, inadvertence, surprise, or excusable neglect within the meaning of CCP § 473(b)." *Plaintiff's Memorandum*, p. 3, lns. 16-19. The Court found that this assertion was not supported by evidence as the only evidence provided was the Declaration of Eric Woodstrom, which did not address the belief that Defendant would comply with the settlement agreement.

In the tentative ruling, the Court questioned why the Request for Dismissal was not made with a retention pursuant to CCP § 664.6. The Court specifically noted, "Had an attorney affidavit of fault been filed on the basis that counsel was neglectful in checking box 1.a.(2) or that checking box 1.a.(2) was a mistake, the outcome would be different. However, Plaintiff has made it clear in the moving papers and again in the reply that dismissing without CCP § 664.6 retention was a deliberate act based on a mistaken belief." The tentative ruling was ultimately adopted by the Court as the final ruling.

Plaintiff did not provide any declarations of counsel with the initial motion. Plaintiff now provides an affidavit of Aaron W. Moore in which Mr. Moore declares that he submitted a CIV-100 with Item 1.a.(3) checked, it was rejected, and

Because the clerk was mistaken about the parties stipulating for settlement and reserved jurisdiction under CCP § 664.6, and needing to get a dismissal on file pursuant to the parties Settlement Agreement, and the lack of ordinary procedures available to challenge a court clerk's determination, which was likely unnecessary, I mistakenly, or neglectfully, signed a request for dismissal without the box checked for "retaining jurisdiction" and had my staff file it. The Court then entered that dismissal.

Moore Decl. ¶ 6.

This is in conflict with the position taken in the previous motion which made no mention of attorney fault and blamed the dismissal without CCP § 664.6 retention on a mistaken belief that Defendant would comply with the settlement agreement. While no affidavit was presented in the previous motion to that effect, it was included in both the moving papers and Reply which were signed by counsel Michael L. Ricks, who also signed the moving papers filed for this motion.

By presenting to the court, whether by signing, filing, submitting, or later advocating, a pleading, petition, written notice of motion, or other similar paper, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following conditions are met:

(1) It is not being presented primarily for an improper purpose, such as to harass or to cause

unnecessary delay or needless increase in the cost of litigation.

(2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.

(3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

(4) The denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief.

CCP § 128.7(b)

Therefore, in the first motion, Mr. Ricks certified to the best of his knowledge, information, and belief, that the reason CCP § 664.6 retention was not included in the CIV-110 is because Plaintiff believed it was not needed as Defendant would comply. However, now, Mr. Ricks has certified to the best of his knowledge, information, and belief, that the actual reason is that the clerk made an error and Mr. Moore was mistaken or neglectful in filing the CIV-110 without CCP § 664.6 retention. The Court has already found that submitting the CIV-110 without CCP § 664.6 was an intentional act.

The Court recognizes that CCP § 473(b) contains a mandatory provision. However, relief is mandatory unless the Court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. In this instance, counsel is now claiming fault in a manner that is conflict with arguments previously made and in conflict with findings previously made by this Court. The Court finds that the dismissal was not in fact caused by the attorney's mistake or neglect, but that the dismissal was an intentional act. The Court will not set aside the dismissal pursuant to CCP § 473(b), as again, the Court finds that filing the Request for Dismissal without CCP § 664.6 retention was an intentional act, not mistake or neglect.

Because the Court lacks jurisdiction to enforce the settlement absent the dismissal being set aside and because the Court is not setting aside the dismissal, the Court does not have jurisdiction to hear the balance of the motion.

The motion is **DENIED**. Plaintiff provided proposed Order that will be modified to reflect the Court's ruling.

JACKSON VS. COLLINS, ET AL.

CASE NUMBER: 24CV-0206492

Tentative Ruling on Motion for Leave to File First Amended Cross-Complaint: Cross-Complainant Jeremiah Jese Brooke moves for an order granting leave to file a First Amended Cross Complaint to: 1) include information about the Litigation Guarantee in this action and to reference and/or specifically name lienholders as cross-defendants; 2) add James Collins, deceased, through his Estate or Personal Representative as a cross-defendant; 3) specify unknown cross-defendants as those with interests adverse to Cross-Complainant Jeremiah Jese Brooke.

The motion was originally noticed for July 27, 2026, however, it was not timely noticed. At the request of Defendant, the matter was continued for a hearing today. Defendant filed a Notice of Continued Hearing date on August 13, 2026, however, it reflects service on Plaintiff James Jackson directly when Defendant should have served Plaintiff's counsel of record. Although a Motion to be Relieved was granted on July 27, 2026, Plaintiff is still represented by counsel. Notice of Entry of Order for the Motion to be Relieved was filed on August 25, 2026, which is after Defendant served Plaintiff. Additionally, the attached Order is an unfiled and unsigned copy of the proposed Order. Plaintiff must be served with a copy of the actual Order filed in this matter. Plaintiff's counsel remains as counsel of record until Plaintiff is served with the Order executed on July 27, 2026 and Notice of Entry of Order is filed.

Without proper notice to Plaintiff, the motion is **DENIED** without prejudice. Defendant provided a proposed Order that will be modified to reflect the Court's ruling.

JOHNSON VS. FISHER

CASE NUMBER: 24CV-0204746

Tentative Ruling on Motion for Discovery of Peace Office Personnel Records: Defendants Brodie Fisher and Morgan Michelle Fisher seek disclosure of Peace Officer records pursuant to Evidence Code sections 1043 and 1045. The records pertain to Plaintiff Edwin Scott Johnson's employment with the California Highway Patrol. Both Plaintiff and the California Highway Patrol oppose the motion.

Request for Judicial Notice. Defendants request the Court take judicial notice of the Order dated November 30, 2023 in Sacramento Superior Court Case No. 34-2002-0032608-CU-OE-GDS and Vehicle Code § 20008. The requests are granted pursuant to Evid Code §§ 452(a) and (d) and 453.

Merits. A motion to obtain a peace officer's personnel records or other documents maintained by a law enforcement agency related to a peace office is commonly known as a *Pitchess* motion. See *Pitchess v. Superior Court* (1974) 11 Cal.3d 531. *Pitchess* motions have been codified in Evid. Code § 1043 which requires a written motion in both civil and criminal actions. Evid. Code § 1043(a). The motion shall include: "1) identification of the proceeding in which discovery or disclosure is sought, the party seeking discovery or disclosure, the peace or custodial officer whose records are sought, the governmental agency that has custody and control of the records, and the time and place at which the motion for discovery or disclosure shall be heard, 2) A description of the type of records or information sought" and "3) Affidavits showing good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records." Evid. Code § 1403(b).

The discovery motion must include, among other things, a description of the type of records or information sought and affidavits showing good cause for their discovery or disclosure. *Riske v. Sup. Ct.* (2016) 6 Cal.App.5th 647, 655. "Good cause for discovery of peace officer personnel records under the statutory scheme exists when the party seeking the discovery shows the "materiality" of the information to the subject matter of the pending litigation and states upon "reasonable belief" that the agency has the type of information sought." *Id.* This initial burden is a "relatively low threshold for discovery". *Id.* A sufficient threshold showing is established if the party seeking records demonstrates through affidavits a "plausible factual foundation" for how the records are material to the subject matter of the pending litigation. *Id.* A "good cause" declaration may be made on information and belief and may be properly made by counsel. *Abatti v. Sup. Ct.* (2003) 112 Cal.App.4th 39, 51. If the threshold good cause is established, the second step is an *in-camera* review by the court in conformity with Evid. Code § 915 and the court shall disclose only that information falling within the statutorily defined standards of relevant. *Riske, supra* 6 Cal.App.5th at 655-56.

Here, Defendants seek an Order that the following records be produced for an in camera review:

1. Plaintiff's CHP personnel file, including hiring documents, performance evaluations, attendance records, fitness for-duty evaluations, and separation documents (resignation, retirement, or termination);
2. All payroll, wage, and benefits records reflecting Plaintiffs compensation during his CHP employment, relevant to his claimed wage loss;
3. All workers' compensation claim files, injury reports, and related medical records pertaining to Plaintiff's, relevant to his pre-incident physical condition and prior injuries;

4. All internal affairs, complaint, investigation, and disciplinary records pertaining to Plaintiff that bear on his credibility, physical condition, or honesty, including but not limited to materials produced or referenced in the Sacramento County civil action involving Plaintiff.

Defendants provided two declarations of counsel. The first declaration filed with the moving papers provides that Defendants attempted to subpoena the requested records from the California Highway Patrol who first stated that Plaintiff was not a peace officer, then stated that this was an error and Plaintiff is a peace officer. The declaration provides no evidence regarding the materiality the records sought and does not meet the minimum requirements for the Court to determine that a plausible factual foundation exists. The lack of supporting evidence was raised in the Oppositions. With the Reply, Defendants provided another declaration of counsel.

The general rule of motion practice, which applies here, is that new evidence is not permitted with reply papers. This principle is most prominent in the context of summary judgment motions, which is not surprising, given that it is a common evidentiary motion. “[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case ...” and if permitted, the other party should be given the opportunity to respond.

Jay v Mahaffey (2013) 218 Cal. App. 4th 1522, 1538-1539.

Beside the issues of timing, the Court notes that the second declaration does not address the records requested. The threshold showing requires that the moving party provide, through affidavits, a plausible factual foundation for how the records are material to the subject matter of the pending litigation. Defendants provide that Plaintiff did not testify truthfully at his deposition regarding alcohol use in the months prior to the incident, that an in camera review was ordered in on a *Pitchess* motion made in the case of *Weaver v. California Highway Patrol* from Sacramento County, and that Plaintiff testified that he violated his training as a CHP officer by failing to report an injury accident and the report states that a friend said that Plaintiff did not want law enforcement involved. The declaration makes no showing as to any of the four requests. Defendants have essentially presented evidence of what is characterized as dishonesty and now seek an entire personnel file from the California Highway Patrol. It appears that some of the records could possibly be relevant to the case at hand (such as documents showing prior injuries or wage statements). However, Defendants have failed to make the necessary threshold evidentiary showing for the Court to order an in-camera review.

The motion is **DENIED** without prejudice. Defendants provided a proposed Order that will be modified to reflect the Court’s ruling.

LOMELI, ET AL. VS. DELIGHT FOODS, ET AL.

CASE NUMBER: CVCV18-0191244

Tentative Ruling on Motion to Be Relieved as Counsel: Yue Zhao of Swanson Law Office moves to be relieved as counsel for Defendant Delight Foods, Inc. CRC 3.1362 sets forth the notice requirements for a Motion to be Relieved as Counsel.

Service

The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case. The notice may be by personal service, electronic service, or mail.

(1) If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either:

- (A) The service address is the current residence or business address of the client; or
- (B) The service address is the last known residence or business address of the client and

the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.

(2) If the notice is served on the client by electronic service under Code of Civil Procedure section 1010.6 and rule 2.251, it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address.

As used in this rule, "current" means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current. If the service is by mail, Code of Civil Procedure section 1011(b) applies.

CRC 3.1362(d).

The Declaration of Yue Zhao notes that the last known address “was verified via PeopleMap on 2/20/26.” No further information is provided regarding any attempts made to confirm the address. February 20, 2026 is more than 30 days ago.

Counsel has not complied with the notice requirements set forth in CRC 3.1362. The motion is **DENIED** without prejudice. The proposed Order provided cannot be modified to reflect the Court’s ruling. Delight Food’s counsel is to prepare the Order.

9:00 a.m. – Review Hearings

COGLITORE HOLDINGS LLC VS. BUNDY

CASE NUMBER: 26CVG-00180

This matter is on calendar for status of accounting. The Judgment of Abandonment by Default (Salvage) was entered on March 4, 2026 ordered disposal of the mobile home. The Inventory was filed on April 6, 2026. The matter was last on calendar on June 8, 2026 and continued to today to allow time for the Accounting, which has not been filed No status report was filed. **An appearance is necessary on today’s calendar.**

JACKSON VS. COLLINS, ET AL.

CASE NUMBER: 24CV-0206492

This matter is on calendar for review regarding status of counsel. The Court notes that while Plaintiff’s counsel filed Notice of Entry of Order for the Motion to be Relieved, the attached Order is an unfiled and unsigned copy of the proposed Order. Plaintiff must be served with a copy of the actual Order filed in this matter. Plaintiff’s counsel remains as counsel of record until Plaintiff is served with the Order executed on July 27, 2026 and Notice of Entry of Order is filed. Additionally, due to service issues, Defendant/Cross-Complainant’s Motion for Leave to file Amended Cross-Complaint was denied on this morning’s Law & Motion calendar. **An appearance is necessary on today’s calendar.**

LOMELI, ET AL. VS. DELIGHT FOODS, ET AL.

CASE NUMBER: CVCV18-0191244

This matter is on calendar for review regarding status of the case. The Court notes that the bankruptcy stay imposed based on the Delight Foods bankruptcy was lifted on July 6, 2026. The Court notes that Defendants Steven Ahrens and Rosa Linda Ahrens recently filed a Notice of Bankruptcy, however, the date of the file stamp on the Voluntary Petition is August 23, 2024. The Court will need an update regarding the Ahrens bankruptcy. The Court notes that final approval of the class action settlement was granted on August 12, 2024 and a judgment has been entered. No party has provided a status as to how or if the judgment was affected by the bankruptcy proceedings. **An appearance by counsel for all parties is necessary on today’s calendar. The Court expects**

the parties to meet and confer prior to the hearing regarding the status of the judgment in this matter. Failure to appear will result in the issuance of an Order to Show Cause Re: Sanctions.

CHATHA, ET AL. VS. TORNADO ALLEY TURBO, INC., ET AL.

CASE NUMBER: 22CV-0200483

This matter is on calendar for status of dismissal. While Plaintiff filed a Request for Dismissal that was processed on August 11, 2026, there are still Cross-Complaints that have not been dismissed. The Cross-Complaints filed by 3 JRM Development, Inc, et al and Benton Air Center, Inc., et al must be dismissed before the Court can close the file. The matter is continued to **Monday, December 7, 2026, at 9:00 a.m. in Department 63** for status of dismissal. The Court expects the parties to file Requests for Dismissal. If the Cross-Complaints are not dismissed prior to December 7, 2026, the Court intends to dismiss them without prejudice pursuant to CRC 3.1385 because the Notice of Conditinal Settlement filed March 24, 2025 indicates that the matter would be dismissed no later than May 23, 2025 and no good cause has been shown. Any good cause will need to be presented at or before the December 7, 2026 review hearing. **No appearance is necessary on today's calendar.**

SUBWAY REAL ESTATE, LLC VS. ROSARIO SABET, ET AL.

CASE NUMBER: 23CV-0202926

This matter is on calendar for review regarding status of responsive pleading or default. The Court notes that Plaintiff filed an Answer to the Cross-Complaint on August 10, 2026. The matter is now at issue and ready to be set for trial. The Court notes that the Complaint it this matter was filed on August 9, 2023. The Court finds this matter to be exempt from plan designation and intends to set the matter for trial no later than April 27, 2026. No jury fees have been posted. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. The Court notes that Plaintiff's status statement requests an order regarding whether discover remains open. The parties are also invited to meet and confer regarding that issue. **An appearance is necessary on today's calendar.**

WARD, ET AL. VS. LEVINDOFSKE, ET AL.

CASE NUMBER: 25CV-0207586

This matter is on calendar for trial setting. The matter is now at issue as Defendants filed their answer to Plaintiff Jeff Ward's first amended complaint on September 4, 2026. The Court intends on setting the matter for trial. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

YATES VS. GENERAL MOTORS, LLC

CASE NUMBER: 24CV-0206692

This matter is on calendar for review regarding status of dismissal. The matter has not been dismissed despite the Court ordering attorney fees and costs on July 15, 2026. The parties were ordered to file status statements no less than five court days prior to today's hearing and have not done so. **An appearance is necessary on today's calendar.**